

Stereo.HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

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I.C.A No.994 of 2014

Naveeda Abbas.

VS

Additional Sessions Judge, Gujranwala, etc.

JUDGMENT

Date of hearing:	<u>13.01.2015.</u>
Appellant by:	Mian Aman Ullah Khan Chughatta, Advocate.
Respondent No.3 by:	Miss Surraya sultana Butt, Advocate.
State by:	Mr. Shaan Gul, Additional Advocate General.

MIRZA VIQAS RAUF, J. Through instant Intra Court appeal, the appellant challenges the validity of judgment dated 29th of September, 2014 passed by the learned single Judge in chamber, dismissing the writ petition filed by the appellant.

2. The facts necessary for the adjudication of instant appeal are that the appellant filed a writ petition No.22560 of 2014 asserting therein that she was married with Abbas Ali and from the wedlock, a daughter namely Mst. Aman Bibi now aged about 8/9 years was born. It was asserted that the respondent No.3 Anwar Ali is the real brother of the appellant and due to his close relation, he often used to take Mst. Aman Bibi alongwith him to his house and thereafter returned her back. It was further asserted that the respondent No.3 took Mst. Aman Bibi alongwith him

recently but neither returned nor allow anyone to meet her, thus he kept the minor under illegal custody.

3. To canvass her grievance, the appellant initially filed a habeas corpus petition under section 491 Cr.P.C for the recovery of her daughter namely Mst. Aman Bibi before the learned Additional Sessions Judge, Gujranwala. The said petition was disposed of vide order dated 06th of August, 2014 with the observation that appellant if so advised may approach the learned Guardian Judge to obtain the custody of the minor. The appellant then assailed the said order by filing the above referred writ petition. The learned single Judge in chamber, while hearing the arguments from both the sides dismissed the writ petition vide judgment dated 29th of September, 2014 which has now been impugned before us through instant appeal.

4. Learned counsel for the appellant contended that the respondent No.3 has kept the minor under illegal custody which clearly requires invocation of jurisdiction bestowed under section 491 Cr.P.C as well as Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Learned counsel added that initially the learned Additional Sessions Judge by way of order dated 06th of August, 2014 has failed to exercise its lawful jurisdiction but while entertaining the writ petition, the learned single Judge in chamber also dismissed the writ petition in a manner, which is alien to law. Learned counsel for the appellant further contended that jurisdiction vested under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 read with section 491 Cr.P.C is the only efficacious remedy available to the appellant which cannot be denied on account of availability of alternate remedy under the

Guardian and Wards Act, 1890 for obtaining the custody of the minor. In support of his contentions, learned counsel for the appellant relied upon the case of “MST. FAZLAN MAI V. RAB NAWAZ and another” (1991 P Cr. L J 12).

5. Conversely, the learned Additional Advocate General, supported the judgment passed by the learned single Judge and maintained that the instant appeal is not maintainable in view of bar contained in section 3 (2) of The Law Reforms Ordinance, 1972. Whereas learned counsel for the respondent No.3 submitted that while dismissing the writ petition of the appellant, the learned single Judge has committed no illegality as alternate and efficacious remedy in the form of petition under section 25 of The Guardian and Wards Act, 1890 is available to the appellant.

6. We have heard the learned counsel for the parties as well as the learned Law Officer and perused the record with their assistance.

7. We observed that initially, the appellant moved an application under section 491 Cr.P.C before the learned Sessions Judge, Gujranwala for the production of minor from the custody of respondent No.3. The same was entrusted to the learned Additional Sessions Judge, Gujranwala who vide its order dated 06th of August, 2014 dismissed the said application with the observation that the appellant if so advised may approach the learned Guardian Judge to obtain the custody of the minor. The appellant, feeling aggrieved of the said order, filed a writ petition in terms of Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 with the following prayer:

“It is, therefore, respectfully prayed that this writ petition may very graciously be accepted and impugned order dated 06.08.2014 passed by learned Additional Sessions Judge, Gujranwala may kindly be set aside and respondent No.2/SHO Police Station Tatlay Ali may kindly be directed to recovered and produced minor/detenué namely Mst. Aman Bibi daughter of the petitioner from the improper and illegal custody of respondent No.3 and to hand over her to the petitioner, in the supreme interest of justice.

Any other relief may also be granted which is just and proper.”

8. Before dilating upon the other aspects of the case, it would be advantageous to first examine the question of maintainability of the instant appeal in the light of section 3 of the Law Reforms Ordinance, (XII of 1972). For ready reference, section 3 is reproduced below:-

“3. Appeal to High Courts in certain cases:

1. *An appeal shall lie to a Bench of two or more Judges of a High Court from a decree passed or final order made by a single Judge of that Court in the exercise of its original civil jurisdiction.*

2. *An appeal shall also lie to a Bench of two or more Judges of a High Court from an order made by a Single Judge of that Court under [clause (1) of Article 199 of the Constitution of the Islamic Republic of Pakistan] not being an Order made under sub-paragraph (i) of paragraph (b) of that clause:*

Provided that the appeal referred to in this sub-section shall not be available or competent if the application brought before the High Court under Article [199] arises out of any proceedings in which

the law applicable provided for at least one appeal [or one revision or one review] to any Court, Tribunal or authority against the original order.

[3. No appeal shall lie under sub-section (1) or sub-section (2) from an interlocutory order or an order which does not dispose of the entire case before the Court.]”

9. Bare reading of the above quoted provision of law clearly postulates that in terms of sub-section 2 of section 3 of the Act *ibid*, no appeal lies under sub-paragraph (b) (i) of clause 1 of Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. For the purpose of convenience, the relevant extract of the above article is reproduced below:-

“199. Jurisdiction of High Court. (1) *Subject to the Constitution, a High Court may, if it is satisfied that no other adequate remedy is provided by law--*

(a) -----

(i) -----

(ii) -----

(b) *on the application of any person, make an order---*

(i) *directing that a person in custody within the territorial jurisdiction of the Court be brought before it so that the Court may satisfy itself that he is not being held in custody without lawful authority or in an unlawful manner;”*

10. It is abundantly clearly from the above that this Court can only issue a writ of habeas corpus in exercise of powers conferred under Article 199 (1) (b) (i) of the Constitution of Islamic Republic of Pakistan, 1973 whereas section 3 (2) of the Law Reforms Ordinance, 1972 clearly excludes the

availability of right of appeal against an order made under sub-paragraph (1) (b) of clause (1) of Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Thus in our humble view, the instant appeal is not maintainable. The judgment cited by the learned counsel for the appellant (supra) is not at all applicable to the instant case as in the said matter, the question relating to the maintainability and competency of the Intra Court appeal was never raised or discussed by this Court, while adjudicating the Intra Court appeal against the judgment passed by the learned single Judge in chamber.

11. So far the merits of the case in hand are concerned, it is observed that the appellant has even not given the specific date when the respondent No.3 has taken away the minor which is an important factor for exercise of jurisdiction under section 491 Cr.P.C as well as the Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. As per her own stance, the minor is aged about 8/9 years and there is no evidence that she was forcibly snatched by the respondent No.3. Learned Additional Sessions Judge, while adjudicating the application under section 491 Cr.P.C has also examined the minor when she appeared before the said court and the learned Additional Sessions Judge, while passing the order dated 06th of August, 2014 observed that she is comfortable with the respondent No.3 and also has a close attachment with him. The Hon'ble Supreme Court of Pakistan in case of *Mst. Nadia Perveen Vs. Mst. Almas Noreen and others (PLD 2012 Supreme Court 758)* has laid down certain guidelines for exercising jurisdiction under section 491 Cr.P.C for

recovery of minor. The relevant extract from the said judgment is reproduced below:-

“3. It has consistently been held by this Court in the cases of Muhammad Javed Umrao v. Miss Uzma Vahid (1988 SCNIR 1891), Nisar Muhammad and another v. Sultan Zari (PLD 1997 SC 852), Mst. Khalida Perveen v. Muhammad Sultan Mehmood and another (PLD 2004 SC 1) and Naziha Ghazali v. The State and another (2001 SCMR 1782) that the matter of custody of minor children can be brought before a High Court under section 491, Cr.P.C. only if the children are of very tender ages they have quite recently been snatched away from lawful custody and there is a real urgency in the matter and also that in such a case the High Court may only regulate interim custody of the children leaving the matter of final custody to be determined by a Guardian Judge. In those cases this Court had repeatedly emphasized that in such matters the jurisdiction of a High Court under section 491, Cr.P.C. is to be exercised, sparingly and such exercise may be undertaken only in exceptional and extraordinary cases of real urgency keeping in view that even a Guardian Judge has the requisite powers of recovery of minor children and regulating their interim custody.”

12. In view of above principles as well as material available on the record, we are of the considered opinion that no such exceptional and extraordinary circumstances exist which call for exercising jurisdiction contemplated under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 as well as under Section 491 Cr.P.C. The learned single Judge in chamber, while dismissing the writ petition by way of judgment dated 29th of September, 2014

has committed no illegality. The judgment of the learned single Judge is in consonance with the settled principles of law which calls for no interference in exercise of appellate jurisdiction.

12. The nutshell of above discussion is that the instant appeal is not maintainable in view of section 3 (2) of the Law Reforms Ordinance, (XII of 1972) and the judgment dated 29th of September, 2014 dismissing the writ petition of the appellant is in accord with law. Resultantly, this Intra Court appeal fails and is hereby dismissed with no order as to costs.

(Mehmood Maqbool Bajwa)
Judge

(Mirza Viqas Rauf)
Judge

Approved for Reporting.

Mahtab